

Chapter 1

Intellectual Property: Concept, History, and Contentions

1.1 The Concept of Intellectual Property

Although the significance of intellectual property (IP) in our life is undisputable domestically and internationally, there is no commonly agreed definition of “intellectual property” available. Many discussions of intellectual property would avoid offering a firm definition of intellectual property, rather mostly start with delimitation of the protection scope an IP regime offers. In general, both domestic and international practices agree that intellectual property covers areas of patent, trademark, copyright, and trade secret. According to the 1979 *Convention Establishing the World Intellectual Property Organization* (WIPO), intellectual property includes the rights relating to the following:

- Literary, artistic, and scientific works
- Performances of performing artists, phonograms, and broadcasts
- Inventions in all fields of human endeavor
- Scientific discoveries
- Industrial designs
- Trademarks, service marks, and commercial names and designations
- Protection against unfair competition
- All other rights resulting from intellectual activity in the industrial, scientific, literary, or artistic fields¹

Under the regime of the World Trade Organization (WTO), the Agreement on Trade-Related Aspects of Intellectual Property Rights (TRIPS Agreement) offers a comprehensive IP protection framework. The TRIPS Agreement, however, does not provide any definition of intellectual property either. It simply states that intellectual property “refers to all categories of intellectual property that are the subject of

¹ Article II(viii), the Convention Establishing the World Intellectual Property Organization, signed on at Stockholm on July 14, 1967, and amended on September 28, 1979.

Sections 1 through 7 of Part II.”² Under the TRIPS Agreement, intellectual property covers the following legal rights to be protected: Copyright and Related Rights, Trademarks, Geographical Indications, Industrial Designs, Patents, Layout-Designs (Topographies) of Integrated Circuits, and Undisclosed Information.

Domestically, there are no exceptions. In China, for example, the above categories of intellectual property rights (IPRs) mentioned in the TRIPS Agreement are protected under various laws and regulations within China’s IP regime. While copyright and related rights are protected under Copyright Law, layout-designs of integrated circuits are protected under the 2001 Regulations on Protection of Integrated Circuit Layout-Designs. For trademarks and geographical indications, they are protected under Trademark Law. While patents and industrial designs are protected under Patent Law, undisclosed information is protected under the 1993 Anti-Unfair Competition Law.

It is worth mentioning here that the protected scope of rights the term Intellectual Property covers in WIPO’s conception is not exactly identical to that of the TRIPS Agreement. However, all these areas are related, in one way or the other, to intellectual creation in the commercial world. It is probably on this ground that the WIPO offers a definition that intellectual property (IP) “refers to *creations of the mind*, such as inventions; literary and artistic works; designs; and symbols, names, images, and designs used in commerce” [1, Emphasis added].

This definition clarifies the scope of protection under contemporary IP laws and identifies the most fundamental, though not the only two key features when we talk about “intellectual property.” First of all, be it some inventions or designs to be protected under patent law, or some symbols or expression of words to indicate a commercial presence to be protected under trademark law, or some literature works or artistic pieces to be protected under copyright law, or some undisclosed commercial know-how to be protected as trade secrets, to some extent they are all products of intellectual endeavors, i.e. they are all “*intellectual*” in one way or the other. Secondly, interests of the products of these intellectual endeavors to be protected under various legal frameworks are those to be realized, licensed, or transferred in commerce, i.e. they are “*properties*.” Therefore, legal interests of patent, trademark, copyright, and trade secret to be protected as intellectual property rights share with each other something in common.

1.2 A Brief History of Intellectual Property

Known references to intellectual property protection in the West can go back as early as ancient Greece and Rome [2]. Examples include yearlong monopolies granted to chefs over particular creations in culinary arts in 500 B.C. in Greece, a case of the ownership of a painting and the table on which the painting appears

²Article 1.2, TRIPS Agreement (Annex 1C of the Marrakesh Agreement Establishing the World Trade Organization signed in Marrakesh, Morocco on 15th April 1994).

in first century Rome, and Roman law, which offered “maker’s marks” legal protection. Although the history of intellectual property protection could be traced back to as early as ancient Greece and Rome, the first formal intellectual property rights protection is said to be a decree in Venice between 1544 and 1545, which protected copyright against piracy [3, pp. 475, 477]. Some research even suggests that slightly earlier than that, in a 1474 statute of the Venetian Republic, the very first lasting patent institution of the protection of intellectual property was set up already.³ It is commonly agreed, however, that the British Statute of Monopolies 1623 and Statute of Anne 1710 are the origins of modern patent law and copyright law. The Statute of Anne states that

Whereas printers, booksellers, and other persons have lately frequently taken the liberty of printing, reprinting, and publishing books without the consent of the authors and proprietors ... to their very great detriment, and too often to the ruin of them and their families: for preventing therefore such practices for the future, and for the encouragement of learned men to compose and write use books, be it enacted ...⁴

It is worth emphasizing, from a historical perspective, that intellectual property rights used to be grants of privilege by the sovereign instead of rights, and up until the early seventeenth century, patents and copyrights were privileges or indulgences based on individual grants awarded by the Monarch or state. The history and evolution of patents, for example, is considered to have three periods, from fifteenth- to eighteenth-century privileges, to 1790–1883 national patents, to internationalization of patents 1883 onward [4, p. 17]. The evolution of intellectual property from granted privileges to legal rights went through a historical process:

The history of patents does not begin with inventions, but rather with royal grants by Queen Elizabeth I (1558–1603) for monopoly privileges that advanced her economic and industrial policies. Approximately 200 years after the end of Elizabeth’s reign, however, a patent represents a legal right obtained by an inventor providing for exclusive control over the production and sale of his mechanical or scientific invention... [T]his radical shift from a grant by royal prerogative to common-law property right... [reveals] the evolution of patents from royal prerogative to common-law doctrine [5, pp. 1255–1256].

The modern usage of the term “intellectual property” is believed to have emerged from the 1867 German Constitution that granted the confederation the legislative power over intellectual property protection. The term was then also used in the 1883 Paris Convention and 1886 Berne Convention and their subsequent international institutions. At the international level, however, even until the second half of the nineteenth century, intellectual property was still perceived as a constraint and limitation of free trade and was not until much later accepted as a legitimate form of monopoly promoting free trade in the TRIPS Agreement [3, p. 483]. Therefore, the evolution from privileges to rights, in particular in the latest development in the TRIPS framework, is considered as a process of “fictionalization” through which it

³WIPO [4, p. 17]. The law of copyright protection in the USA was closely based on the original provisions in the Statute of Anne until the USA enacted the current Copyright Act in 1976. See WIPO [4, p. 25].

⁴As cited in Moore [2].

provides a powerful construction of a “metaphorical link between property in knowledge and the legal mechanisms that have been developed to protect material property rights” [6, p. 18].

It is worth mentioning here that the time the British Statute of Monopolies and Statute of Anne marked the beginning of the modern intellectual property regime around the early eighteenth century was also the time the Industrial Revolution started in the U.K. and spreading throughout Europe and North America. From 1760, as a research shows, “the number of patents granted in England grew rapidly in direct relation to the Industrial Revolution” [4, p. 18]. Most importantly, the era around the Industrial Revolution was also the time when classical philosophers such as Hobbes in 1651, Locke in 1689, and Rousseau in 1762 were constructing the social contract theory that marked the beginning of modern law. Modern law defeats medieval mythology through replacing the worship of God with the cult of knowledge and thus defends the individual autonomy. Protection of intellectual property provides a perfect combination of the defense of individual autonomy and the cult of knowledge. It may be something more than a simple coincident that it was also the time capitalism gained its dominance in the West and provided the main mechanism of industrialization throughout Europe and North America. Putting the evolution of intellectual property from granted privileges to private rights protecting the authors and creators back to its historical background would allow us to better understand that “the notion of ‘author’ constitutes the privileged moment of *individualization* in the history of ideas, knowledge, literature, philosophy, and the sciences” [7, p. 101].

The intellectual history of intellectual property from granted privileges to legal rights indicates that the justifications of intellectual property are not outside of time nor a history-transcending development. Rather, the process happened in a certain social and historical context and was enshrined with a certain ideology. Talking about the justifications of intellectual property without specific social-historical context might not perceive the true picture.

Also, the triumph of the individualistic ideology underlining the evolution makes the development of intellectual property from privileges to rights to a certain extent in the disadvantage of others, the public. Famous intellectual property professor Drahos suggests that from a historical point of view, “[i]ntellectual property rights are a distinctive form of privilege that rely on the *creation* of a common disadvantage” [8, p. 213, Emphasis original]. According to Drahos, trademarks in traditional common law are to indicate information of origin, serving “consumer and public interests,” as trademarks’ commercial existence depend on the investment of “meaning and recognition” from consumers in the market [8, pp. 204–205]. However, the influence of proprietorism has gradually made the protection of the interests of traders the dominant purpose of trademark law, and “statutory privilege now comes to serve private interests and private use” [8, p. 206]. The protection of copyrights and patent rights has gone through a similar process. The continual process of reference of trademarks, copyrights, and patent rights to the “aggregated term of rights” is a process of relocation of intellectual property rights “in the language of private property [that] has obscured their origins in public privilege” [8, p. 213].

Therefore, it should be kept in mind that the historical evolution process of how intellectual property has come to be protected as private rights is a gradual development process through which independently granted privileges became legal rights. The evolution from privileges to rights took place in a special social-historical context and enshrined an individualistic ideology. During this process, the balance between private rights and public interests has always been a key issue, though it might not have been very well maintained. This explains the TRIPS Agreement's emphasis on the balance between right holders versus users and social policy goals.

1.3 The Contentions and Implications of IPR Protection

Before the introduction of IPRs into the international trading framework through the TRIPS Agreement, intellectual property was still the domain of specialists and IPR producers [9, p. vii]. TRIPS' incorporation of IP into the international trading framework "elicited great concern over its pervasive role in people's lives and in society in general" [9, p. vii]. This incorporation reveals serious contentions and divides regarding IPR protection internationally between the developed and developing countries. This IPR divide between the North and the South is evident in the TRIPS negotiation, in particular during the process of the formulation of the Preamble and the Aims and Objectives provision of the TRIPS Agreement.

The origins of the TRIPS negotiation can be traced back to the GATT Ministerial Conference at Punta del Este, Uruguay in September 1986, a critical moment "when the negotiations between developed and less-developed countries over the revision of the Paris Convention were deadlocked at WIPO" [10, p. 982]. Before the Uruguay Round, in the 1970s in particular, developing countries focused very much on establishing new rules on a New International Economic Order (NIEO) that depends on greater access to technology protected by IPRs in developed countries. Developed countries, however, have been very much concerned with the WIPO system's failure of providing effective protections to the interests of their technology-based and expressive industries [11, p. 3]. As one of the principal "new area" negotiations in the Uruguay Round, the incorporation of IPRs into international trade was quite controversial and divided between developing and developed countries.⁵

The negotiation process of the TRIPS well reflects the contentions of IPR protection between the developed and developing countries. While the draft legal text from developed countries including the EC, the USA, Japan, Switzerland, and Australia—the "A" text—emphasizes the domestic enforcement and the applicability of the GATT dispute settlement mechanism to TRIPS disputes, a dozen developing countries proposed another legal text—the "B" text—with a focus on maintaining flexibility to implement economic and social development objectives [12, pp. 507–508]. At the

⁵Ricupero and Ortiz [11, pp. 3–4]. The other "new area" negotiation in the Uruguay concerned trade in services which resulted in the General Agreement on Trade in Services (GATS). See also, Yu [10, pp. 983–984].

very beginning of the negotiation, developed countries and a few developing countries were only expecting a Tokyo Round type “code” to be incorporated into the GATT framework. The USA proposal submitted to the Group of Negotiation on Goods (GATT) in 1988, for example, suggests one of the objectives to “[e]ncourage non-signatory governments to adopt and enforce the agreed standards for protection of intellectual property and join the [GATT] agreement.”⁶ In relation to the revision and amendment of the GATT, the USA emphasized:

[A]ny GATT agreement must be sufficiently flexible to accommodate future consensus on improved protection of intellectual property. The agreement should include new forms of technology and creativity as they appear. Parties should agree to a mechanism for amendment and revision of the agreement and should provide for regular review of its terms.⁷

India, however, submitted a detailed paper indicating a developing country’s perspective in sharp contrast with the US proposal.⁸ India suggested that only the restrictive and anticompetitive practices of the IPR owners “can be considered to be trade-related because they alone distort or impede international trade.”⁹ India therefore suggested that according to the mandates from the Trade Negotiation Committee, the negotiation on trade-related aspects of intellectual property rights

... should be governed by the concerns and public policy objectives underlying the national systems for the protection of intellectual property, including developmental and technological objectives. This is particularly important for developing countries because the intellectual property system has wide ranging implications for their economic and social development. Any principle or standard relating to intellectual property rights should be carefully tested against the touchstone of the socio-economic, developmental, technological and public interest needs of developing countries.¹⁰

Therefore, India concluded that “[i]t would ... not be appropriate to establish within the framework of the General Agreement on Tariffs and Trade any new rules and disciplines pertaining to standards and principles concerning the availability, scope and use of intellectual property rights.”¹¹ However, due to the threats of sanctions and implicit dismantling of the GATT as well as concessions offered by developed countries in other areas like agriculture and textiles, “the resistance of developing countries was overcome” [11, p. 4]. The final result of the Uruguay Round mirrored the “A” text and “embodied norms that has been accepted by industrialized

⁶Suggestion by the United States for Achieving the Negotiating Objective (Revision), United States Proposal for Negotiations on Trade-Related Aspects of Intellectual Property Rights, Negotiating Group on Trade-Related Aspects of Intellectual Property Rights, including Trade in Counterfeit Goods (MTN.GNG/NG11/W/14/Rev.1, 17 October 1988), p. 3.

⁷*Ibid.*, p. 18.

⁸Standards and Principles concerning the Availability, Scope and Use of Trade-Related Intellectual Property Rights, Communication from India to Negotiating Group on Trade-Related Aspects of Intellectual Property Rights, including Trade in Counterfeit Goods (MTN.GNG/NG11/W/37, 10 July 1989).

⁹*Ibid.*, p. 2.

¹⁰*Ibid.*

¹¹*Ibid.*, pp. 19–20.

countries,” and developing countries’ concerns “were reflected in large part in two provisions—Articles 7 and 8 [of the TRIPS Agreement]” [12, p. 508].

The successful incorporation of the IPRs into the WTO through the conclusion of the TRIPS Agreement to some extent recognizes the power asymmetry and legalizes the fragmentation between the developed and developing countries. This unfortunate IPR divide between the North and the South in this regard is the birth defect of the TRIPS regime under the WTO framework. Moreover, the negative implications of TRIPS’ birth defect travel beyond the IPR framework and affect the entire WTO framework. Developing countries adopted new commitments regarding IPR protection in the Uruguay Round in the expectation of getting better market access in agriculture, textiles, and other sectors [13, p. 80]. When these benefits failed to materialize, developing countries’ dissatisfaction has become one of the key factors causing the deadlock of the Doha Round negotiation.¹² The birth defect of the TRIPS and the deadlock of the Doha Round negotiation indicate that the critical examination of the TRIPS regime warrants a further examination of the WTO legitimacy.

1.4 China’s TRIPS Compliance and the Jurisprudential Significances

The IPR contention indicated in TRIPS’ birth defect can be better illustrated in China’s TRIPS compliance and WTO entry. Indeed, China’s accession to the WTO has been a spotlight issue of the world trading system for many years. The dynamics between China and the WTO around China’s 2001 entry has generated a substantial amount of literature in which China’s noncompliance to or conflict with WTO norms has been the center of debate and scrutiny [15–21].

Quite often, China scholars are relatively pessimistic about China’s integration into the international regime and the future development of China’s legal system. Lubman’s critique of China, examining the dynamic interplay of legal institutions and economic reform in post-Mao China, is one example. For Lubman, law in China “was not formally differentiated from other forms of exercise of state power, in striking contrast with the West,” which leads to a weak judicial system and compromise-based institutions [22, pp. 23, 31]. Furthermore, as “the depth of traditional values presents a considerable obstacle to the deepening of legal consciousness and the strengthening of legal institutions,” and control of the Party-state remains while judicial power is still subject to administrative authority, Lubman’s assessment of the future of the rule of law in China remains pessimistic [22, pp. 299–304]. Thus, for Lubman, due to “the absence of a unifying concept of law and a considerable fragmentation of authority,” and weak differentiation of the judicial system from the administrative bureaucracy, China does not have an effectively

¹² See for example, the coalition of developing countries known as the Like Minded Group (LMG)’s attempt to challenge the launch of the Doha Round negotiation. Narlikar [14, pp. 54–55].

functioning legal system and is unable to fulfill international obligations [22, pp. 317–318]. Similarly, Donald Clarke suggests that China's motivation toward WTO accession is more to use the WTO to facilitate China's domestic economic system reform rather than to increase international market access [23, p. 97]. This means China's accession to the WTO is domestic-oriented rather than international-oriented. Clarke further suggests that "[r]eforms simply imposed from outside are unlikely to go beyond surface compliance," and "the main driver of change in the Chinese legal system will be internal developments in China, not foreign legal assistance programs" [23, pp. 97–98, 118].

Quite contrary to the above doubts and skepticism toward China's international compliance, some China scholars are quite optimistic and suggest that China is heading toward rule of law and integrating with international regimes regardless of any domestic impediments. Peerenboom, for example, argues that "[r]elying in a comparative law context on predetermined theories drawn from the experiences of very different countries is dangerous," as this will miss "what is important within the Chinese legal system," and "opportunities for exploring different roles that law might play given China's particular context..." [24, p. xi]. Peerenboom therefore starts with a Geertzian "thick description" of what was actually happening on the ground to examine the role and rule of law in China. He argues that rule of law with Chinese characteristics—which might be an alternative to liberal democratic rule of law—"is still rule of law" [24, p. xiv]. "Despite numerous obstacles," Peerenboom argues that China's legal reform indicates "a shift from a legal regime best characterized as rule by law toward a system that complies with the basic elements of a thin rule of law," a rule of law with Chinese characteristics that is different from and an alternative to a Liberal Democratic rule of law [24, p. 558].

Quite different from either the pessimistic or the optimistic perspective of China's integration with international legal regimes, Potter instead looks at the dynamic mediation process between the international norms and China's local cultural norms. In *The Chinese Legal System*, Potter examines the function of China's legal system with reference to the dynamics of interplay between international legal norms and China's local legal culture. Potter argues that the two decades' development of legal system in China before its WTO accession has been a process of "selective adaptation" by which "conditions of local legal culture" constantly mediate the application of "legal norms associated with forms of law borrowed from abroad," in particular in the fields of "legal institutions, contract, property, human rights, and foreign economic relations" [21, pp. 2, 3]. For Potter, it is a theoretical puzzle of China's legal reform that how law functions during China's legal reform while China's "fealty to socialism" both qualifies and at the same time diminishes rule of law [25, p. 466]. Potter suggests that China's response to norms of globalized liberalism has been a process of selective adaptation, a "consistent pattern by which foreign legal norms and institutional arrangements are adjusted to meet local political and ideological imperatives" [21, p. 137]. However, how China can "achieve compliance with GATT/WTO requirements" and remain "true to its local cultural and developmental imperatives" presents a challenge for China [21, p. 142].

Among these different perspectives, the question of legitimacy regarding China's integration into international norms has been either implicitly or explicitly the focus of attention. On the one hand, WTO legitimacy has been challenged whenever WTO norms were mediated by China's laws and practice. On the other hand, the legitimacy of China's domestic legal regime has been under question when China's WTO compliance—in particular in the field of intellectual property rights protection—reveals contradictions. In both pessimistic and optimistic perspectives, the differences in evaluation of China's conformity toward international norms presuppose a normative standard of the rule of law. Lubman's perspective questions China's legitimacy as China fails to meet the international standard of the rule of law. As for Peerenboom's perspective, although he predicts the future triumph of the rule of law in China, his characterization of the rule of law with Chinese characteristics as a “thin” rule of law still presents a “thin” yet real doubt of China's conformity. In each of these two perspectives, legitimacy is something that is either given or presupposed. The theory of selective adaptation, on the other hand, addresses the issue of legitimacy with reference to the dynamic mediation between foreign norms and local imperatives and therefore gives us a different perspective in looking at the legitimacy issue regarding China's WTO compliance.¹³ All these different perspectives lead us to the puzzle of this book: the “how” and the “why” of the dynamics between China and the WTO, in particular in the area of intellectual property, and its theoretical implications.

It is therefore of fundamental importance in theory and practice to examine China's international compliance with a focus on the dynamics between China and the WTO's TRIPS regime. By incorporating intellectual property into the international trading framework, TRIPS is undoubtedly one of the most significant developments in the history of the world trading system. However, TRIPS' potential negative effect on international development has also been one of the most serious concerns in post-TRIPS WTO negotiations. Developing and least developed countries' dissatisfaction with TRIPS' potential negative effects on development was one of the key reasons for the failure of the Doha Round negotiations [26, p. 95, 27, p. 165, 28, 29, p. 247, 30]. The controversy around TRIPS makes TRIPS compliance as a research field theoretically and empirically significant and rich in implications for law and development, WTO jurisprudence, and contemporary legal theory.

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¹³ For more detailed discussion of the theory of selective adaptation and its jurisprudential implications, see *infra* Chap. 5.

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